

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1323

By: Humphrey

AS INTRODUCED

An Act relating to waters and water rights; directing the Oklahoma Water Resources Board to conduct certain study; providing details on study contents; requiring report of finding be submitted by certain date; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 105.34 of Title 82, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Water Resources Board is hereby directed to conduct a comprehensive study on the water flow of the Kiamichi River. The study shall include, but shall not be limited to, the following:

1. Assessment of the river's flow rates throughout the year under varying conditions, including periods of drought and flood;

2. Evaluation of the minimum flow required to maintain the river's ecological health and integrity;

1 3. Determination of the flow capacity necessary to allow for
2 permitting the removal of water from the river without causing
3 adverse impacts to the environment, existing water rights, and
4 downstream users; and

5 4. Analysis of the potential effects of constructing and
6 operating a low-water dam on the river, including:

7 a. hydrological impacts on water flow and sediment
8 transport,

9 b. ecological effects on fish, wildlife, and riparian
10 habitats, and

11 c. implications for recreational activities and local
12 communities.

13 B. The Board shall submit a final report detailing the findings
14 of the study and any recommendations for legislative or regulatory
15 actions to the Governor, the President Pro Tempore of the Oklahoma
16 State Senate, and the Speaker of the Oklahoma House of
17 Representatives. The report shall be due no later than December 31,
18 2026.

19 SECTION 2. This act shall become effective November 1, 2025.
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